

1.	22CV0205	MULTI-HOUSING TAX CREDIT PARTNERS III v. CBM-96 LLC
Motion for Judgment on the Pleadings		

This case arises out of alleged construction defects in apartment buildings at the Placer Village Apartments located at 2789 Ray Lawyer Dr., Placerville, California (Placerville Apartments). Cross-Defendant, The CBM Group, Inc. (“Cross-Defendant” or “CBM”) moves for judgment on the pleadings pursuant to Code of Civil Procedure (“CCP”) § 438(c) as to all causes of action alleged in Cross-Complaint of Cross-Complainant, CBM-96, LLC (“CBM-96”) on the grounds that the Cross-Complaint fails to state facts sufficient to constitute a cause of action.

Meet and Confer

“(a) Before filing a motion for judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining if an agreement can be reached that resolves the claims to be raised in the motion for judgment on the pleadings. If an amended pleading is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a motion for judgment on the pleadings against the amended pleading. (Code of Civil Procedure, § 439(a))

Based on the Declaration of Nathaniel Patterson, the parties had a telephonic meet and confer which was unsuccessful in resolving the need for the current Motion.

Request for Judicial Notice

Cal. Rules of Court, rule 3.1113(l), covers judicial notice, requiring that “[a]ny request for judicial notice shall be made in a separate document listing the specific items for which notice is requested and shall comply with rule 3.1306(c).”

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed. A trial court is required to take judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. (Evidence Code § 453)

Defendant requests that the Court take judicial notice of certain pleadings that are contained within the Court’s file. Pursuant to Evidence Code §452(d)(1), Defendant’s request for judicial notice is granted.

Judgment on the Pleadings

“A motion for judgment on the pleadings performs the same function as a general demurrer....” (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999, 79 Cal.Rptr.2d 544.) “It is axiomatic that a demurrer lies only for defects appearing on the face of the pleadings.” (*Harboring Villas Homeowners Assn. v. Superior Court* (1998) 63 Cal.App.4th 426, 429, 73 Cal.Rptr.2d 646.) Consequently, when considering a motion for judgment on the pleadings, “[a]ll facts alleged in the complaint are deemed admitted....” (*Lance Camper Manufacturing Corp. v. Republic Indemnity Co.* (1996) 44 Cal.App.4th 194, 198, 51 Cal.Rptr.2d 622.) “Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (*Cloud*, at p. 999, 79 Cal.Rptr.2d 544.)” (*Sykora v. State Department of State Hospitals* (2014) 225 Cal.App.4th 1530, 1534.)

CBM argues that Multi-Housing Tax Credit Partners III’s (“MHTCP”) Complaint does not allege any cause of action or facts that would place liability on CBM, has not named CBM as a Defendant and cannot do so. Therefore, CBM argues, under the Cross-Complaint, there can be no indemnity owed by CBM to CBM-96 where there can be no liability by CBM for the claims alleged in MHTCP’s Complaint.

CBM-96 opposes, arguing that under the Cross-Complaint filed by Placer Village Apartments, L.P. (the “Partnership”) against CBM, if the Partnership prevails, CBM will be liable for damages arising from the same water intrusion that forms the basis of MHTCP’s claims against CBM-96. Further, under California law, a defendant may file a cross-complaint for equitable indemnity against a party who was not named in the original complaint if there is a sufficient subject matter connection between the action and the cross-complaint. (*People ex rel. Dept. of Transportation v. Superior Court* (1980) 26 Cal.3d 744.)

Most importantly, as this is a motion for judgment on the pleadings, the Court must liberally construe CBM-96’s cross-complaint with a view to substantial justice between the parties. (Code Civ. Proc. § 452)

The Court reviewed CBM’s Reply and it does not change the analysis.

TENTATIVE RULING #1: MOTION FOR JUDGMENT ON THE PLEADINGS IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO

COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.